

ORIGINAL

IN THE COURT OF APPEALS IN THE STATE OF MISSISSIPPI
NO 2020-CP-1259-COA

FILED

AUG 20 2021

MATTHEW O REARDON

APPELLANT

v.

OFFICE OF THE CLERK
SUPREME COURT
COURT OF APPEALS

STATE OF MISSISSIPPI

APPELLEE

Appeal from the Circuit Court of Lafayette County, MS

Third Judicial District, Case No. LK17-295, L17-233, & L20-316

BRIEF OF PRO-SE APPELLANT

Certificate of Interested Persons

Matthew Oliver Reardon v. State of Mississippi No.

The undersigned pro-se Appellant, pursuant to Mississippi Rules of Appellate Procedure 28(a)(1), states that the following listed persons have an interest in the outcome of the case. These representations are made in order that the Justices of this Court may evaluate possible disqualification or conflicts of interest

Judge John Kelly Luther
Presiding Circuit Court Judge

Matthew O Reardon
Pro-Se Appellant

Justice Court Judge Carolyn Bell
Lafayette County, MS Justice Court Judge

Mickey Mallette
Assistant District Attorney
Oxford, MS 38655

Lynn Fitch
MS Attorney General
Jackson, MS

Ashley Lauren Sulser
Representing the State of MS

This the 17th Day of August, 2021


Matthew Reardon -Pro Se Appellant

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2. The trial judge erred in not recusing himself from the matter after being made aware of reported corrupt involvement surrounding the details of this cause.....	
3. The court erred in holding Mr. Reardon for nearly 96 hours prior to initial appearance before Justice Court Judge Carolyn Bell in order for bond to be set.....	
4. The court erred and in fact committed plain and reversible error when Reardon was never presented or afforded a preliminary hearing, a mandated right in felony allegations	
5. The trial court erred in setting Mr Reardon's appearance bond at \$150,000 for a crime Mr Reardon had claimed he had exculpatory evidence proving the alleged crime as one of an impossibility to have been committed.....	
6. The trial court violated Mr. Reardon's 8 th Amendment right for the first time in setting bond at an astronomical, unconstitutional, and in a punitive way based on the fact that Mr. Reardon had never before been accused of a felony crime, nor were any injuries were inflicted upon the accuser/alleged victim. Mr Reardon is a USMC Veteran and had no history of being a flight risk.....	
7. Mississippi Law Requires that the accused MUST appear before a judge within 48-hours of arrest for appearance bond to be set. In the event appearance comes after 48-hours, Mississippi Rules of Criminal Procedure MANDATE that the person detained be released on execution of an appearance bond in the minimal amount set pursuant to Rule 8. This amount would be \$5,000, however Mr	

Reardon's bond was set at \$150,000, a figure 3x higher than the stated maximum.....

8. That not only was Mr Reardon prohibited from obtaining a fair and constitutional appearance bond that he or his family could afford, but in lack of a preliminary hearing being afforded, the charge not only warranted release on personal recognisance (ROR), but state law actually directly calls for ROR. However Mr Reardon remained incarcerated for a total of 6-weeks time as the State preyed on the mind of a private citizen/father whom needed to regain his freedom to support himself and his 2-year old child. Mr Reardon has more recently been diagnosed with BiPolar Disorder, an undiagnosed at the time mental illness which had been exploited and exacerbated in the denial of certain key due process rights of the accused. This again amounts to plain and reversible error which was easily preventable.....
9. The prosecution engaged in misconduct that requires reversal.
10. The Public Defender's Office had submitted an in forma pauperis motion for writ of Habeas Corpus to the trial court which was approved to proceed that same day, 6/8/2017. Mr Reardon was never advised of such petition being filed nor was he advised of it being approved to proceed that same day. Consequently, Mr Reardon stayed illegally confined to the Lafayette County Detention Center under an outrageous and unconstitutional bond of \$150,000 until he pled out under extreme duress and misrepresentation (at its absolute best) of his then retained legal council on 7/6/2017.....

Table of Authorities

CASES

<i>Bryant INC v Walters</i> , 493 So. 2d 933, 938 (Miss. 1986).....	
<i>Carpenter v Berry</i> , 58 So 3d 1158, 1162 (Miss 2011).....	
<i>Gerstein v Pugh</i> , 420 US 103 95 S. Ct 854, 43 L Ed 2d 54.....	
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<i>Garner v State</i> 864 So 2d 1005, 1008 (Miss Ct App 2004).....	
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STATUTES

MISS. CODE § 99-19-101	passim
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MISS. CODE § 99-19-105	passim
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reAdoption of Miss Rules of Criminal Procedure No 89-R-99038-SCT.....	

Statement of the Issues

1. Whether The trial court erred in not granting evidentiary hearing based on allegations of fact in post conviction relief and subsequent motions
2. The trial judge erred in not recusing himself from the matter after being made aware of reported corrupt involvement surrounding the details of this cause
 - a) Was intentional and avoidable misconduct by trial judge to blame.
 - b) Did altering the names of the assigned judge rise to the level of fraud committed during the onset of an active case
3. Whether The court erred in holding Mr. Reardon for nearly 96 hours prior to initial appearance before Justice Court Judge Carolyn Bell in order for bond to be set
4. Whether the trial court erred and in fact committed plain and reversible error when Reardon was never presented or afforded a preliminary hearing
5. Whether the trial court erred in setting Mr Reardon's appearance bond at \$150,000 for a crime Mr Reardon had claimed he had exculpatory evidence proving the alleged crime as one of an impossibility to have been committed
6. Whether The trial court violated Mr. Reardon's 8th Amendment right for the first time in setting bond at an astronomical, unconstitutional, and in a punitive way based on the fact that Mr. Reardon had never before been accused of a felony crime, nor were any injuries were inflicted upon the accuser/alleged victim
7. Whether the bond set at \$150,000 did in fact violate Mr Reardon's 8th Amendment Right which protects against excessive bail and cruel and unusual punishment inflicted
8. Whether a "banishment" from the city and county further violated Mr Reardon's 8th Amendment Rights
9. Whether a Covenant to not sue Lafayette County, The City Of Oxford, The Sheriffs Department, and the Lynch's was an even further violation of Reardon's 8th amendment rights as plea truly wasn't voluntary given Mr Reardon's mental condition at the time combined with the undiagnosed mental illness of BiPolar.
10. Whether the prosecution engaged in misconduct that requires reversal.
11. Whether Mr Reardon was extremely prejudiced when he was never afforded a preliminary hearing, and if in fact this accusation warranted release on personal recognizance in the absence of such

Statement of the Case

Matthew Reardon pled out under extreme duress due to the trial court and Lafayette County Officials acting in a manner inconsistent with due process of law. Reardon submitted a Post Conviction Relief in July of 2020 seeking to toss his plea due to due process rights deprivation, fraud committed, malfeasant legal representation, and new exculpatory evidence arising. Reardon's motion was denied¹ as well as subsequent motions further detailing everything out. He files this direct appeal challenging the legality of both his plea and the sentence based on the grounds set forth herein, and ultimately seeks peremptory reversal due to manifest errors which justify such. At the very minimum, Reardon seeks an evidentiary hearing to be granted in order to properly present the facts and details of his case.

Statement of Facts

Mr. Reardon was charged with Aggravated stalking on May 26, 2017 alleging that on or before May 8th, 2017 he put Todd Lynch in fear of his life with an AR-15. Reardon was held on a \$150,000 bond set by Justice Court Judge Carolyn Bell and stayed incarcerated for six weeks time until he pled out under duress in order to regain his freedom to support his minor child. Reardon has a bill of sale proving he didn't purchase said weapon until May 20th, 2017 in Picayune, MS from an individual named Larry Watkins. Reardon tried to assert he had a bill of sale proving his innocence at his initial hearing and was further denied the ability to speak. Reardon was never afforded a preliminary hearing nor advised of his right, however Reardon's wish to present evidence by way of a bill of sale should have been received by this justice court

judge as Reardon's want and need for a preliminary hearing. However no preliminary hearing was ever set nor was Reardon's bond lowered from the original amount of \$150,000. This is three times higher than the stated maximum in the newly revised MS Rules of Criminal Procedure. asserting the following meritorious reasons this trial court should grant relief under Rule 60: **(1) fraud, misrepresentation, or other misconduct of an adverse party, (3) newly discovered evidence which by due diligence could not have been discovered in time to move for a new trial under Rule 59(b), and (6) any other reason justifying relief from the judgment.** It is the opinion of the Appellant that **the fatal errors that occurred which the Defendant bears the brunt if not sole responsibility for are incurable and in turn have rendered the Judgement in the original criminal cause LK17-295 to be void and invalid.** where the only relief that could possibly remedy the fraud and misconduct committed would be a complete reversal of the plea and judgement or the setting of a hearing on facts and evidence. Appellant further affirms that he has continued to be victimized by false accusations and frivolous legal proceedings initiated to harass, delay, and ultimately influence other legal proceedings including this one and that Appellant has been refused access and visitation to his minor child on knowingly false statements made by Phyllis Crowder-Kester and her attorneys. Appellant has provided evidence of a plethora of crimes actively being committed which rise to criminal conspiracy, RICO, and The Filing False Instruments which shows the intentional commission of Fraud. Defendant has refused to provide Appellant the equal protections of the laws under the 14th amendment of the United States Constitution while adamantly refusing to allow an evidentiary hearing or even examining and ascertaining the jaw dropping facts of fraud being committed and refusing to reprimand those who are responsible for everything. Most appalling is that the Defendant in this cause has seemingly praised its actors for treasonous crimes against humanity which the actions detailed out have led to by Defendant refusing to

contain and cure its default and defect against not only its own established rules, laws, and state constitution but the United States Constitution which Appellant swore a lifelong oath to his country to protect and defend. It is for these reasons listed that Appellant conveys in the most respectful yet adamant of ways that denying him relief he seeks under the facts and valid reasons listed in this motion and encompassing this entire case which the Defendant chose to initiate on false pretenses would completely deny him of the equal protections under the laws afforded by the 14th Amendment to the United States Constitution. This in turn would aggrieve permanent and irreparable harm on the Appellant and his family, demonstrating a complete refusal by the Defendant to act ethically and in a morally satisfying way, forever severing all public trust and integrity.

APPELLANT STATES THAT FRAUD COMMITTED BY LAFAYETTE COUNTY OFFICIALS AND EMPLOYEES, INTENTIONALLY DEPRIVED HIM OF HIS DUE PROCESS RIGHTS

MRCP Rule 5.1(b)(3) states if a person is taken into custody, the person shall be taken without unnecessary delay, **and in no event later than forty-eight (48) hours after arrest**, before a judge who shall proceed with an initial appearance.

The cited rule goes on to state **If the person arrested is not taken before a judge within forty-eight (48) hours, the person detained shall be released on execution of an appearance bond in the minimum amount set pursuant to Rule 8 and directed to appear at a specified time and place.** Rule 5.1(b)(3) conforms to the United States Supreme Court's holdings in *Gerstein v. Pugh* , 420 U.S. 103, 95 S. Ct. 854, 43 L. Ed. 2d 54 (1975), and *County of Riverside v. McLaughlin* , 500 U.S. 44, 111 S. Ct. 1661, 114 L. Ed. 2d 49 (1991).

Due Process rights entitle the defendant in a cause receive a preliminary hearing to determine if there is enough evidence warranting the defendant to stand trial..Appellant was never advised of his right to a preliminary hearing. **Due to it taking twice the allowable time to bring Appellant before a judge for an initial appearance, Appellant was entitled to his bail being set at the minimum amount on the chart in Rule 8, which is \$5,000, NOT \$150,000. However, Rule 6.1** states that if a preliminary hearing is not commenced within fourteen (14) days as required by subsection (a), and is not postponed as allowed by subsection (d), the defendant shall be released on recognizance, unless the offense is non-bailable or release is prohibited by Article 3, Section 29(2) of the Mississippi Constitution of 1890.**THEREFORE, Due to Appellant never being afforded a preliminary hearing, nor a preliminary hearing being set within 14 days, The State had an obligation to Release on Recognizance, further directing Appellant to appear at a specified time and place** pursuant to MRCP Rule 5.1(b)(3). This is not an opinion and it is not a discretionary rule that Defendant can pick and choose when to use, but rather this is a statement in fact and is evident by the wording in Rule 6.1 “The Defendant SHALL be released on recognizance.

The fact that Appellant was never allowed the opportunity upfront to provide proof of his innocence or obtain a lower bond amount to regain his freedom to provide for his family is gravely concerning. This is most certainly a mitigating factor which provided an unfair, unethical, and unscrupulous advantage to the State, while proving to be highly prejudicial to Appellant and is the sole reason that Appellant pled out under coercion and duress at the advisement and misrepresentation of his attorney.

APPELLANT WAS DENIED CERTAIN DUE PROCESS RIGHTS GUARANTEED TO ALL CITIZENS UNDER STATE AND FEDERAL LAWS

Reardon was unlawfully held, restricted, suppressed, and confined in the Lafayette County Detention Center from the time of his arrest, May 26, 2017 until July 6, 2017 when he pled out to the accused crime under duress at the advisement of his attorney. Appellant received an initial/bond hearing on May 30, 2017. Defendant was in violation of MRCP Rule 5.1(b)(3) by it not bringing Appellant before the court for an initial appearance within 48 hours for an appearance bond to be set and in turn steered its own favorable outcome by keeping Appellant's appearance bond set at \$150,000 for the entire 6 weeks of Appellants confinement conveying a completely helpless and hopeless feeling upon Appellant whom needed to be released in order to provide care for his minor child

Reardon was not allowed to speak to offer concrete evidence of his innocence, and further Reardon was DENIED the opportunity to obtain a lower bond amount that fell within the established guidelines that the Appellant or his family could afford. Movant's bond was set three times higher than maximum guidelines allowed despite the State of Mississippi not producing so much as a single piece of evidence suggesting it had a valid claim. Appellant in this cause asserted he had evidence to prove his innocence which should have been heard and examined up front and most certainly at a Preliminary Hearing. Unfortunately for the Appellant, he never was afforded a Preliminary Hearing whether it be through the sole fault of the State, or a shared fault of the Appellant's appointed legal counsel.

A Habeas corpus petition was filed by the public defender commanding the sheriff to bring Appellant before the court to show just cause for the illegal confinement of Appellant, and while the petition was approved to proceed in forma pauperis, Appellant was never brought before the court and was further illegally confined for an additional 4 weeks.

Appellant was never made aware of this Habeas petition ever being filed until nearly 6 months after he plead out to free himself for the sake of his child and his sanity after being unlawfully held for a crime that was never truly committed. This amounts to misrepresentation by Appellant's council and Appellant has been requesting answers to no avail making the Appellant question whether fraud had occurred here as well, yet unsure where the true responsibility and liability falls.

All requests by Appellant to have his bond lowered to a constitutionally fit amount went completely ignored after being given a bond amount that was three times higher than the maximum guidelines established less than a year prior by way of the Mississippi Supreme Court. Movant/Appellant never caused any physical harm to anyone and never had been accused of a felony crime prior to this allegation.

That the assigned judge on Civil Cause # L20-316 was fraudulently altered from Judge Kent Smith to Judge John Kelly Luther despite contentious evidence showing that this Circuit Court Judge had upfront knowledge of the bizarre and uncharted criminal acts committed yet continued to insist on ruling on Appellant's motions and petitions only to deny them, say they were not well taken, and even referencing to a motion to compel and preserve evidence as moot despite some of the most serious and concerning claims asserted.

Movant/Appellant had pending ongoing litigation against Lafayette County due to a highly contestable arrest made May 1st, 2017 when movant was arrested for disorderly conduct for standing on public property holding the then state flag of Mississippi. Appellant states this cause stemmed from a mutually beneficial arrangement which provided benefit and shielded

Lafayette County Sheriff's Department and Deputy Timmy Pruitt from liability stemming from the May 1st 2017 Arrest made. At the same time, it accomplished the intended goal of Rhea and Robyn Tannehill, effectively silencing Appellant through taking out an emergency injunction over constitutionally protected activity along with their own embellishments and interpretations of certain things Appellant had said which NEVER conveyed a physical threat and in referenced the reporting of serious crimes to the proper authorities which was in fact done. All of this done in order to prevent Appellant from speaking and addressing the board of aldermen at City Hall on June 6, 2017 (The Day Robyn Tannehill was elected Mayor of Oxford) which Appellant was slotted in advance to speak at the conclusion of Joey East in order to petition the Government for a redress of grievances, an absolutely key part of the first amendment that keeps America a "Free" nation that repels tyranny. Evidence of Appellant slotted in advance to speak is attached as EXHIBIT E.

Reardon states that it is this reason along with his child and girlfriend at the time which would have easily shown and conveyed the fact that movant/Appellant was not a flight risk, not to mention movant is a USMC Veteran that has never had any prior history of being a flight risk. **Therefore, it has remained the impression of the Reardon that bond was used in a punitive way to influence an outcome of a sham legal proceeding which was initiated by Lafayette County (State of Mississippi), it's employees, along with elected and appointed officials under knowingly false pretenses by a Justice Court Judge (Carolyn Bell) whom has had a history of setting bonds on the lower end of the bond guidelines.**

The fact that movant was interrupted by Judge Bell and advised of his fifth amendment rights on two separate occasions when he tried to show information upfront which would show the impossibility of movant to have committed the alleged crime should concern and frighten every American. Appellant

asserts in complete confidence what all precluding evidence would demonstrate a clearly shown political attack on Appellant by way of criminal conspiracy, racketeering, organized crime, and the successful deprivation and continued deprivation of the Appellant's rights. Appellant/Movant states that his life was completely ruined, and millions of splinters sent ripping through the surrounding areas at the hands of an extortionist scheme which has perpetuated itself by ways of Appellant's ex-girlfriend and mother of his child initiating additional legal proceedings which she, her attorneys, and the state of Mississippi know to be false yet have allowed her to continue to get away with making the Defendant, the State of Mississippi complicit in the continued fraud and attempts to frame an innocent American whom doubles as a USMC Veteran.

Appellant asserts this conduct and behavior is dangerous, treasonous, and downright constitutionally damning. Even more concerning is the fact that all evidence shows Appellant's innocence in which Defendant abused its own system, refused to follow its own rules laid out, insisted on carrying its scheme against Appellant regardless of who witnessed the commission of its own crimes and regardless of how blatantly obnoxious, highly prejudicial, overly oppressive, and tyrannically suppressive it attacked and inflicted irreparable harm on Appellant which has had far reaching consequences. After being unlawfully held captive in the Lafayette County Detention Center for six weeks' time, Appellant was coerced by his legal counsel (at the time) Brennan Horan to plea out in order to get out and avoid being "Railroaded" by additional charges that the state allegedly was going to start "piling on" in order to try to get a quick yet highly immoral win despite indisputable evidence being brought to the attention of Appellant's attorney whom looking back now would appear to have been "Bought" or "Paid For" to help influence a favorable outcome. Especially when this attorney claimed to have gone on "quail hunts with Judge Luther" and went to law school with Rhea Tannehill, further asserting that he "knew him well".

That Appellant's Guilty plea was involuntary due to a denial of his due process rights as guaranteed by the United States and State of Mississippi Constitutions, thus making his plea of guilty a violation of the

laws of the State of Mississippi That Appellant received inadequate representation by his legal counsel on record, in which adequate counsel representation likely would have resulted in an outright dismissal of the State's charge. Furthermore, Appellant only met with his legal council one time and no discovery motion was ever requested by Appellant's legal counsel. That the state has refused to comply with a Freedom of Information Act Request for information regarding the phone call received on May 24, 2017 which through the state's own admission on a more recent public records request ultimately led to the charge being levied against the Appellant.

Movant re-asserts by way of Fraud and collusion that this entire case has been tainted and manipulated in a plot that has continued to Deprive Appellant of his Rights

Finally, despite the alleged rights deprivation, there exists additional evidence of material facts, not reasonably discoverable at the time involuntary plea was given and not previously presented at that time, which requires vacation of the conviction or sentence in the interest of justice.

Conclusion

It's more than a coincidence that all of this transpired when assessing the factual evidence surrounding it. Appellant was given a bond FAR outside of established guidelines exactly 7 days prior to the soon to be incoming mayor's election in order to help ensure that Appellant remained locked away, suppressed, and unable to fulfill his constitutional duty. Appellant was given what all impressions gave off as a "forced plea deal" exactly 7 days after Tannehill was sworn into office and assumed command as Mayor. Appellant had to agree to five years supervised probation which encompassed a banishment order exiling him from Oxford and Lafayette County for a period of 5 years, AND a covenant to not sue Lafayette County, its officials, its employees, The City of Oxford, its officials, it's employees, Sheriff Buddy East or any of his dully appointed deputies, as well as the Victim/Claimants Todd and Ashley Lynch.

This effectively barred Appellant from suing for anything relating to LK17-295 or the prior matter involving the May 1st, 2017 arrest made. Appellant poses before this court the obvious question of WHY would that be mandated if foul play wasn't involved and how many other cases it is aware of where the person charged had to agree not to sue the person claiming they were put in fear of their life? Especially when the Appellant didn't even own an AR-15 or any type of rifle or long gun, and only possessed a 40cal Taurus Pistol until May 20th, 2017. Reardon respectfully requests reverse and render or for an evidentiary hearing to be granted to him.

Respectfully submitted,

A handwritten signature in dark ink, appearing to read 'MR', is positioned above a horizontal line.

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